

26STCP01347 26STCP01347

County: los-angeles

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Case Number: 26STCP01347 Hearing Date: September 14, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Unifirst Corporation's Petition to Confirm Arbitration Award is Granted.

Petitioner is

to file a proposed judgment in accordance with this order within 20 days.

Analysis:

On April 6, 2026, Petitioner Unifirst Corporation

("Petitioner") filed the instant Petition to Confirm Arbitration Award (the

"Petition") against Respondent Elite Tires & Auto Care ("Respondent"). This is a continued hearing on the Petition. No response to the Petition has been filed to

date.

Legal Standard

"Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." (Code Civ.

Proc., § 1285.) "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.)

A response to a

Petition to Confirm Arbitration Award that seeks to vacate or correct the award must be served and filed no later than 100 days after the date of the service of a signed copy of the award on the respondent, or within ten days of service of the Petition to Confirm, whichever is sooner. (Code Civ. Proc., §§ 1288.2, 1290.6; Valencia v. Mendoza (2024) 103 Cal. App. 5th 427, 445.)

Discussion

Service of the Petition and Notice of Hearing (CCP § 1290.4)

Code of Civil

Procedure, section 1290.4 requires that the petition and notice of hearing be served on Respondent “in the manner provided in the arbitration agreement for the service of such petition and notice” or “[i]f the arbitration agreement does not provide the manner in which such service shall be made . . . [s]ervice within this State shall be made in the manner provided by law for the service of summons in an action.” (Code Civ. Proc., § 1290.4, subds. (a), (b).) The arbitration agreement does not provide for the manner of service of the petition and notice of hearing, which therefore must be served in the manner of service for a summons. (Pet., Attachment 4(b), p. 2.)

At the initial hearing on August 10, 2026, the Court noted that service of the Petition and Notice of Hearing Date did not comply with the statutory requirements, in that service on the corporate defendant was made on the corporation’s agent at the agent’s home address, 810 W. 29th St, Long Beach, California, without any explanation why that was an appropriate address for substitute service. (Minute Order, 08/10/26 (citing Code Civ. Proc., § 415.20).) The Court continued the hearing and ordered Petitioner to file proof of service of the Petition and Notice of New Hearing Date in accordance with the statutory requirements by August 24, 2026. (Ibid.) Petitioner was also ordered to give Respondent notice of the ruling. (Ibid.)

On September 2, 2026, Petitioner filed a Notice of Motion on Petition to Confirm Contractual Arbitration Award and a Declaration in Support of Petition to Confirm Arbitration Award.

The Supporting Declaration

states that Respondent did not participate in the arbitration proceeding and describes two prior unsuccessful attempts to serve Respondent through its agent for service of process, Isela Arteaga.

First, service was attempted at the Cedar Avenue address for service of process identified on the Secretary of State website, which was determined to be an invalid address. (Cooper Decl., ¶

5.) Service was then attempted at a

residential address where Mr. Arteaga no longer resides. (Id., ¶6.) Finally, service was attempted at the 810 W. 29th Street address, located through a public records search. (Id.,

¶7.) The Declaration says that the

public records search is attached as Exhibit A, but it is not; Exhibit A are printouts from the Secretary of State website, identifying the Cedar Avenue address.

The Court nonetheless

finds this showing sufficient, considered in light of the original proof of service. Substitute service on a corporation via its

agent for service of process may be accomplished at the person's usual mailing address by leaving the papers with a person apparently in charge thereof and

thereafter mailing the documents to that address by First Class mail. (Code Civ. Proc., § 415.20(a).) The proof of service identifies the 810 W.

29th address as the "home" address for Mr. Arteaga, and states that the papers were delivered to a competent member of the household, described as a "co-occupant to Mr. Arteaga." (Proof of Mailing

(Substitute Service, 06/02/2026.) The

Declaration establishes unsuccessful efforts to identify another physical address at which papers could be served on Mr. Arteaga.

(Cooper Decl., ¶¶5-6.) The Proof

of Service documents that the papers were later delivered by First Class Mail, as required for substitute service.

(Proof of Mailing (Substitute Service), 06/02/2026.) Based on this showing, the Court finds that service of the Petition complied with the requirements of Code of Civil Procedure section 1290.4.

The Notice of Motion

on Petition filed on September 2, 2026 gave Defendant notice of the continued hearing date. The Notice includes

a proof of service by mail on Defendant on August 28, 2026 at the 810 W. 29th Street address. (Notice of Motion, filed

09/02/26, p. 3.) Having found service of the Petition valid at that address,

the Court finds service by mail of the Notice of Motion also sufficient.

Service of the Arbitration Award (CCP § 1283.6)

Code of Civil

Procedure section 1283.6 requires that "[t]he neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement." (Code Civ. Proc., § 1283.6.) This requirement may be satisfied by service by the arbitrator, or upon proper service of the award with the petition. (See *Murray v. Civil Service Employees Ins. Co.* (1967) 254 Cal.App.2d 796, 799-800.) The arbitration award was served on the parties on November 10, 2025. (Pet., Attachment 8(c), p. 1.)

Confirmation of the Arbitration Award

An arbitration award

is not directly enforceable until it is confirmed by a court and judgment is entered. (Code Civ. Proc. § 1287.6; *Jones v. Kvistad* (1971) 19 Cal.App.3d 836, 840.) The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (CCP § 1286; *Valsan Partners Limited Partnership v. Calcor Space Facility, Inc.* (1994) 25 Cal.App.4th 809, 818.) Code of Civil Procedure, section 1285.4 states a petition under this chapter shall:

a)

Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

b)

Set forth the names of the arbitrators.

c)

Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

(Code Civ. Proc., § 1285.4.) The Petition complies with these requirements. It sets forth the nature of the arbitration agreement, the

name of the arbitrator, and attaches a copy of the arbitration award. (Pet., ¶¶4-6 and Attachment 8(c).) The arbitrator awarded Petitioner \$24,521.47 principal, \$269.83 pre-award interest, and \$7,627.50 pre-award attorney's fees. (Id. at Attachment 8(c), pp. 4-5.) Therefore, the arbitration award is confirmed in favor of Petitioner in that amount.

Attorney's Fees,
Costs and Interest

To the extent Petitioner requests attorney's fees according to proof and costs of \$500.00 (Pet., ¶10e-f), those are permitted on a petition to confirm arbitration award. (Code Civ. Proc., § 1293.2; MBNA America Bank, N.A. v. Gorman (2006) 147 Cal.App.4th.Supp. 1, 7.) Petitioner may file a memorandum of costs pursuant to Cal. Rules of Court Rule 3.1700 and a noticed motion for attorney's fees pursuant to Cal. Rules of Court Rule 3.1702. Also, "a successful party to arbitration is entitled to post-award, pre-judgment interest under Civil Code section 3287, subdivision (a). (Pierotti v. Torian (2000) 81 Cal.App.4th 17, 27.) Petitioner's proposed judgment must include the legal basis and calculation for the interest sought therein.

Conclusion

Petitioner Unifirst Corporation's Petition to Confirm Arbitration Award is granted.

Petitioner is
to file a proposed judgment in accordance with this order within 20 days.

Judicial Assistant is to give notice.